

ORIGINAL

FEDERAL MARITIME COMMISSION

PETITION OF THE NATIONAL CUSTOMS
BROKERS AND FORWARDERS
ASSOCIATION OF AMERICA, INC. FOR
LIMITED EXEMPTION FROM CERTAIN
TARIFF REQUIREMENTS OF THE
SHIPPING ACT OF 1984

Petition No. P5-03

Served: February 8, 2005

ORDER

On August 8, 2003, the National Customs Brokers and Forwarders Association of America, Inc. ("NCBFAA") filed a petition with the Federal Maritime Commission seeking the initiation of a rulemaking exempting non-vessel-operating common carriers ("NVOCCs") from all provisions of the Shipping Act of 1984 that require NVOCCs to establish, maintain, publish and/or adhere to rate tariffs for ocean transportation. On December 17, 2004, the Commission issued a Final Rule, pursuant to its authority under section 16 of the Shipping Act of 1984, 46 U.S.C. app. 1715, to exempt NVOCCs from the tariff publication requirements of the Shipping Act, subject to certain conditions. 69 Fed. Reg. 75850 (December 20, 2004) ("NSA Exemption"). Under the NSA Exemption NVOCCs have the option of entering into service arrangements with their shipper-customers ("NSAs") and will be exempt from the otherwise applicable tariff publication and adherence requirements of the Shipping Act, on the condition that their NSAs are filed with the Commission.

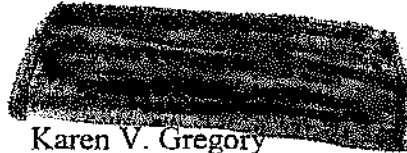
We recognize that the recently enacted exemption does not fully satisfy NCBFAA's request for relief. Nonetheless, we would emphasize that in the creation of the new rule, all of NCBFAA's arguments were fully considered. Moreover, the new rule grants to NVOCCs substantial contracting flexibility.

Accordingly, the Commission has determined in its discretion that no further action on NCBFAA's petition is warranted.

THEREFORE, IT IS ORDERED, That the Petition is denied; and

IT IS FURTHER ORDERED, That this proceeding is discontinued.

By the Commission.



Karen V. Gregory
Assistant Secretary